



Donovan Clark <clarkdonovan85@gmail.com>

Re: Concerns re: Evakay and Della placement

1 message

Sullivan, Christine <CSullivan@washoecounty.gov>

21 June 2024 at 13:29

To: "Ballou, Jennie" <JBallou@washoecounty.gov>, Jennifer Jeans <jjeans@nnlegalaid.org>, "Beach, Tyler" <tbeach@da.washoecounty.gov>, "Mathews, Tirzah" <TMathews@washoecounty.gov>, "Pomerleau, Kasey" <KPomerleau@washoecounty.gov>

Cc: Gingerbread Gal <megdmcc33@gmail.com>, "clarkdonovan85@gmail.com" <clarkdonovan85@gmail.com>, "Hart III, C. William" <BHart@washoecounty.gov>

Yes, thank you for the information.

Christine Sullivan

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From: Ballou, Jennie <JBallou@washoecounty.gov>

Sent: Friday, June 21, 2024 1:21:13 PM

To: Jennifer Jeans <jjeans@nnlegalaid.org>; Beach, Tyler <tbeach@da.washoecounty.gov>; Mathews, Tirzah <TMathews@washoecounty.gov>; Sullivan, Christine <CSullivan@washoecounty.gov>; Pomerleau, Kasey <KPomerleau@washoecounty.gov>

Cc: Gingerbread Gal <megdmcc33@gmail.com>; clarkdonovan85@gmail.com <clarkdonovan85@gmail.com>; Hart III, C. William <BHart@washoecounty.gov>

Subject: RE: Concerns re: Evakay and Della placement

Thank you, Jennifer.

From: Jennifer Jeans <jjeans@nnlegalaid.org>

Sent: Friday, June 21, 2024 11:26 AM

To: Beach, Tyler <tbeach@da.washoecounty.gov>; Mathews, Tirzah <TMathews@washoecounty.gov>; Sullivan, Christine <CSullivan@washoecounty.gov>; Ballou, Jennie <JBallou@washoecounty.gov>; Pomerleau, Kasey <KPomerleau@washoecounty.gov>

Cc: Gingerbread Gal <megdmcc33@gmail.com>; clarkdonovan85@gmail.com; Hart III, C. William <BHart@washoecounty.gov>

Subject: Re: Concerns re: Evakay and Della placement

[**NOTICE:** This message originated outside of Washoe County -- **DO NOT CLICK** on **links** or open **attachments** unless you are sure the content is safe.]

Good morning everyone,

I was able to speak privately with Eva. She has authorized me to share the following information:

She is not sexually active. When concerns arose as to her sexuality, and an appointment was made with the doctor, she took the path of least resistance and accepted the birth control to ease the adults' minds and also to help her with her

menstrual cramps. Her arm is still healing from the birth control and it was at least mildly physically uncomfortable. She does not wish to have the implant removed at this time because she would like for her arm to heal and to see if the implant will assist in her menstrual cramps. It is my sincerest hope that her wishes in regards to her body be respected at this time.

Please let me know if you have any questions.

Best,

Jennifer Jeans

Child Advocacy Attorney

Northern Nevada Legal Aid

(formerly known as Washoe Legal Services)

Direct Phone: (775) 321-2058



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From: Beach, Tyler <tbeach@da.washoecounty.gov>

Sent: Friday, June 14, 2024 11:21 AM

To: Mathews, Tirzah <TMathews@washoecounty.gov>; Sullivan, Christine <CSullivan@washoecounty.gov>; Ballou, Jennie <JBallou@washoecounty.gov>; Pomerleau, Kasey <KPomerleau@washoecounty.gov>; Jennifer Jeans <jjeans@nnlegalaid.org>

Cc: Gingerbread Gal <megdmcc33@gmail.com>; clarkdonovan85@gmail.com <clarkdonovan85@gmail.com>; Hart III, C. William <BHart@washoecounty.gov>

Subject: RE: Concerns re: Evakay and Della placement

***** This email is originating from outside of your organization. Please be cautious as the sender may not be who it says it is from. *****

I wanted to respond to everyone on these issues.

As to birth control, WCHSA may seek medical treatment of a child if it is an emergency or necessary. A child may obtain birth control from a doctor, pursuant to NRS 129.030(1)(a) and (2)(b) if she is residing outside of the care of her parent or

guardian and that is based upon her being placed in protective custody if that decision is found to be appropriate between herself and her medical provider. In this case, the information WCHSA has is that Evakay advocated for birth control herself. WCHSA did not obtain or force her to obtain birth control so the provision of necessary or emergency treatment would not apply. Likewise, Della did not advocate or force her to obtain birth control. I know that the parents have different information but this is the information I have at this time. I do understand the concerns of the parents in this instance. This action appears to be within Evakay's rights if it is truly what she wanted. I think what might be most helpful is if her attorney were to have a conversation with her to get to the bottom of this. I believe Jennifer is out today but I did try to touch base with her telephonically and hope to do so shortly. If Evakay no longer wishes to receive the birth control, then we can work to remove it in a safe and appropriate manner. I am more than happy to discuss this further.

As to being late for the therapeutic appointment, the runner had trouble locating the therapist for the first time. Given that, they were a little late. I do not anticipate that being an issue in the future. The runner did apologize and I do not anticipate this being an issue in the future. If it is a issue in the future or a chronic issue, please let me know and we can look into it further.

As to the missed appointment, there was a miscommunication between the social worker and the runner as to the first therapeutic appointment date. We apologize for that error, and, again, do not anticipate that happening in the future. WCHSA recognizes the importance of therapeutic treatment in this case and will make sure that the children are present at all future appointments. If this does happen again, please let me know and I will look into the cause.

As to in-home safety planning, WCHSA needs some additional information and is working to gather that through providers and may require a change focus conversation with the providers. Ms. Pomerleau is out this week and returns next week. I have a staffing with both her and Jennie on Monday I believe. At that point, we will discuss setting a CFT hopefully in the next week or so as I do believe we need to meet prior to July. At that time, I hope to have the majority of the questions answered regarding what is required for in-home safety planning and if anything additional is needed of the parents.

Please let me know if there are any outstanding questions I failed to address. Thank you.



Tyler E. Beach

Deputy District Attorney

Civil Division

Washoe County District Attorney

Tbeach@da.washoecounty.gov

Office: 775.328.5700

One S. Sierra St. 7th Floor, Reno, NV 89501

Justice First, People Always



From: Mathews, Tirzah <TMathews@washoecounty.gov>

Sent: Friday, June 14, 2024 9:37 AM

To: Sullivan, Christine <CSullivan@washoecounty.gov>; Beach, Tyler <tbeach@da.washoecounty.gov>; Ballou, Jennie <JBallou@washoecounty.gov>; Pomerleau, Kasey <KPomerleau@washoecounty.gov>; Jennifer Jeans <jjeans@nnlegalaid.org>

Cc: Gingerbread Gal <megdmcc33@gmail.com>; clarkdonovan85@gmail.com; Hart III, C. William <BHart@washoecounty.gov>

Subject: RE: Concerns re: Evakay and Della placement

Importance: High

Good Morning,

I wanted to follow up with the below email sent by Ms. Sullivan yesterday. I have included the children's attorney, Jennifer Jeans on it as well as my client, Donovan Clark.

Mr. Clark shares the same concerns about the Agency's failure to consult with and notify him or Ms. McCafferty of putting Evakay on birth control, let alone choosing the most invasive option of implanting hormones into Evakay's arm. We also share concerns about the girls not being transported to their individual therapy sessions and the girls' tardiness to family sessions. Per the therapeutic recommendations drafted by Jesse DeHaven, the current placement should be reevaluated as it ***directly impacts the reunification process between Ms. McCafferty, Mr. Clark and their children.***

My client and I were vastly relying on yesterday's scheduled CFT to address these serious concerns. However, the CFT was cancelled same day by Ms. Ballou. I understand from Ms. Ballou's email that she is in training until July 2 but will reschedule.

Since every one of these concerns is acute in nature, waiting at least another 2 weeks is unacceptable in these circumstances without further communication by the Agency to the team as a whole. I urge the Agency to provide us further information on an action plan that can be put in place immediately to resolve the birth control issue, assurances that the girls attend all of their therapy appointments and the any remaining barriers for conditions for return.

Please advise.

Thank you,

Tirzah Faith Mathews, Esq.

Deputy Alternate Public Defender

[350 S. Center Street](#), 6th Floor

Reno, Nevada 89501

(775) 328-3975 mobile

From: Sullivan, Christine <CSullivan@washoecounty.gov>

Sent: Thursday, June 13, 2024 1:40 PM

To: Beach, Tyler <tbeach@da.washoecounty.gov>; Ballou, Jennie <JBallou@washoecounty.gov>; Pomerleau, Kasey <KPomerleau@washoecounty.gov>; Mathews, Tirzah <TMathews@washoecounty.gov>

Cc: Gingerbread Gal <megdmcc33@gmail.com>

Subject: Concerns re: Evakay and Della placement

Pursuant to our conversation, here are the concerns we have right now:

1. Evakay was put on birth control without the parents' permission or knowledge. Megan is Jewish and is steadfastly against any birth control that has been done to Evakay.
2. The girls were late to their family therapy and also they did not attend their own therapy sessions as required.
3. How close are we to an In-Home safety plan and what are the remaining concerns for the Agency?

Can you please get some information and provide it to me, Megan and Tirzah.

Thank you,



Christine Sullivan

Deputy Public Defender | Public Defender's Office

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